

Amendment No. 1 to SB1133

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 1133*

House Bill No. 1256

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 40-11-139(d), is amended by deleting the subsection and substituting:

(d)

(1) If a court issues a bench warrant or a capias due to a defendant's failure to appear on a felony or on a Class A or Class B misdemeanor that is violent or sexual in nature as determined by the court, or if a defendant is charged with a failure to appear, then the defendant shall be placed on any available state or federal list or database as a fugitive from justice, including the National Crime Information Center.

(2) If necessary, the judicial official must sign the bench warrant or capias by the end of business on the day of the defendant's failure to appear. The clerk shall transmit the bench warrant or capias to the entering agency within one (1) business day of issuance. The entering agency shall enter the bench warrant or capias into any available state or federal list or database, including the National Crime Information Center.

(3) A surety is not liable for any undertaking if the defendant has not been placed on the available state or federal list or database within three (3) business days of the entering agency's receipt of the bench warrant or capias.

(4) If the defendant is apprehended outside the state by a law enforcement agency in a jurisdiction that is outside the limitation entered into the

state or federal list or database, then the district attorney general must determine, within one (1) business day of being notified of the apprehension, whether to initiate extradition proceedings for the defendant's return.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.